

Cross References: 200400023371
200400015200
201610514
201610515

**AMENDMENTS TO THE
DECLARATION OF RESTRICTIVE COVENANTS
FOR OAK PARK SUBDIVISION**

These Amendments to the Declaration of Restrictive Covenants for Oak Park Subdivision were made as of the date set forth below by Oak Park Homeowners Association, Inc.

WITNESSETH

WHEREAS, the Hendricks County, Indiana subdivision commonly known as Oak Park was originally created and formed pursuant to certain Plats filed with the Office of the Recorder of Hendricks County, Indiana; and

WHEREAS, in conjunction with the Plats, the Oak Park Subdivision was formed pursuant to a certain "Declaration of Restrictive Covenants for Oak Park Subdivision," recorded in the Office of the Recorder of Hendricks County, Indiana, on May 14, 2014, as **Instrument No. 200400015200**, (hereafter, the "Declaration"); and

WHEREAS, the Declaration was amended by a "First Amendment to the Declaration of Restrictive Covenants for Oak Park Subdivision," recorded in the Office of the Recorder of Hendricks County, Indiana on May 20, 2016, as **Instrument No. 201610514**; and

WHEREAS, the developer of the Oak Park Subdivision caused to be incorporated under the laws of the State of Indiana a nonprofit corporation under the name "Oak Park Homeowners Association, Inc." ("Association") for the purpose of managing the affairs, enforcing the restrictions and maintaining the Common Areas of Oak Park; and

WHEREAS, Paragraph 26 of the Declaration, as amended, sets forth that the Declaration can be amended, at any time, in whole or in part, upon approval of the Owners representing a majority of the Lots in Oak Park; and

WHEREAS, the Owners of the Lots within the Oak Park Subdivision, being members of the Association, desire to adopt certain amendments to the Declaration as set forth below; and

WHEREAS, after notice of the proposed amendments was duly given to the members of the Association, the Owners representing at least a majority of the Lots in Oak Park approved the following amendments to the Declaration, as evidenced by the Owner signatures attached hereto.

NOW, THEREFORE, the Declaration is hereby amended as follows:

AMENDMENT

A new Section 28 is added to the Declaration, which shall read, in its entirety, as follows:

28. LEASING

Section 28.1. General Prohibition of Leased Lots ("Rental Ban"). The Association's members wish to ensure that the residents within Oak Park share the same proprietary interest in and respect of the Lots and the Common Areas, and to encourage residents to not only maintain property values but also to improve them by recognizing that Owner-occupants have more incentive to do so compared to non-Owner occupants. Thus, there shall be no leasing or rental of any Lot except as otherwise provided in this Section 28. Furthermore, communal housing for nonfamily groups, including, without limitation, boarding houses, lodging houses, dormitories, fraternity/sorority houses, and communes are expressly prohibited. This Rental Ban includes and prohibits the leasing of any Lot other than the entire Lot (i.e. renting out individual rooms within a dwelling).

Section 28.2. "Rental" and "Lease" Defined. The "Rental Ban" described in this Section 28 applies to all forms of non-Owner occupancies, except as specifically provided herein. For the purposes of this Section 28, "rented" or "leased," as used interchangeably herein, and any derivation thereof, singular or plural, means leased or rented or occupied, whether or not for compensation of any kind, by anyone other than an Owner of the Lot together with members of his or her household. However, the "Rental Ban" will not apply to any situation where a Lot is occupied by members of the Owner's immediate family. For purposes of this Section 28, "immediate family" shall only include the Owner's parents, children, step-parents, step-children, or spouse. This kind of "family" occupancy will not be considered to be a "rental" for the purposes of the Rental Ban; provided, however, the Owner and occupants will still be subject to the remaining provisions and requirements of this Section 28. All other forms of non-Owner occupancies of a Lot shall be considered rentals for the purposes of this Section 28.

Any Lot owned by a Trustee or by a Fiduciary shall not be deemed to be a rental, provided that the resident is the Trustee, the Fiduciary of an Estate, or a beneficiary of the Trust or Estate, and further provided that no rent, payment, service or other consideration is paid or provided to the Owner or any other party in connection with that occupancy.

Occupancies of a Lot where the Owner is a corporation, partnership, limited liability company, business, or other entity shall be considered rentals for the purpose of this Section 28 and are therefore prohibited.

Section 28.3. Effective Date of Rental Ban. As of the date on which this Amendment is recorded in the Office of the Recorder of Hendricks County, Indiana (the "Recording Date"), these rental restrictions shall be deemed effective. The Rental Ban shall not apply to any existing rental in place as of the Recording Date, so long as the Owner-landlord delivers to the Board, within sixty (60) days after the Recording Date, a copy of each executed lease of such Lot which is in effect as of the Recording Date. The Owners of such pre-Recording Date rented Lots shall not be subject to the Rental Ban but shall be subject to the remaining provisions of this Section 28. However, when the legal Owners of record of any of the pre-Recording Date rented Lots sell, transfer or convey such Lot(s) to another Owner after the Recording Date, such Lots shall immediately become subject to the Rental Ban. The failure of any such Owner-landlord of a rented Lot to deliver a copy of such pre-Recording Date lease within said sixty (60) day period shall result in said Owner-landlord's Lot(s) being subject to the Rental Ban (from and after the date of expiration of such pre-Recording Date lease, and without opportunity for renewal).

Section 28.4. Hardship Exceptions and Waiver. The Owner may request the Board to waive the Rental Ban if the Owner establishes to the Board's satisfaction that the Rental Ban will cause undue hardship. If the Board approves in writing of the Owner's request, the Owner may rent said Lot, subject to any further conditions or limitations imposed by the Board in the Board's discretion, but only if the Owner satisfies all other requirements of Section 28. Such decision shall be at the sole discretion of the Board and shall be subject to further conditions and limitations as the Board may deem appropriate. An "undue hardship" is defined as:

1. Temporary relocation of the residence of an Owner to a point outside of a fifty (50) mile radius of the perimeter of Oak Park made necessary due to a change of employment of at least one (1) of such Owners; or
2. Necessary relocation of the residence of an Owner due to mental or physical infirmity or disability of at least one (1) of such Owners; or
3. The Owner is a reservist in the United States Armed Forces who is called to temporary active duty, or is active-duty personnel in the United States Armed Forces, and is temporarily deployed more than fifty (50) miles from the Lot.

If an Owner desires an exception based upon hardships other than those specifically defined in this Section 28.4, the Owner must submit a written request describing the nature of the alleged hardship. The Board may approve or deny such requests as it deems appropriate.

Section 28.5. General Conditions. All permitted leases (i.e. hardship leases and grandfathered leases), including renewals, shall be in writing, and no lease shall be entered into for a term of less than one (1) year. All permitted leases shall be made expressly subject and subordinate in all respects to the terms of this Declaration, the By-Laws, and any rules and regulations promulgated by the Board, as amended, to the same extent as if the tenant were an Owner; and shall provide for direct action by the Association and/or any Owner against the tenant with or without joinder of the Owner of such Lot. If such provision is not in the lease, it will be deemed to be in such lease. The Owner shall supply copies of such legal documents to

the tenants prior to the effective date of the permitted lease. Owners who do not reside in the Lot must provide the Board with the name of the tenant(s) and any other residents living in the Lot. No subleasing is permitted. A copy of each executed permitted lease by an Owner which identifies the tenant (but which may have the rental amount deleted) shall be provided to the Board by the Owner within thirty (30) days after execution.

Section 28.6. Violations. Any lease or attempted lease of a Lot in violation of the provisions of this Section 28 is voidable at the election of the Board. In the event that an Owner violates any provision of this Section 28, the Association, or any Owner, shall have the right to exercise any available remedies at law or equity, including, but not limited to, bringing an action for injunctive relief to have the tenant(s) removed from the Lot.

Section 28.7. Burden of Proof. Anything to the contrary herein notwithstanding, if at any time a Lot is not occupied by one of the Owners thereof, there shall be a presumption that the Lot is being leased and subject to the provisions of this Section 28 and the Owner shall have the burden of proving to the satisfaction of the Board that the occupancy is not in violation of the terms of this Section 28, including, but not limited to, the delivery to the Board of a written statement of the nature and circumstances of the occupancy and any written document or memorandum that is the legal basis for the occupancy. For purposes of this Section 28 and this Section 28.7, any occupancy (including occupancy pursuant to a rent-to-buy contract or similar arrangement or pursuant to any option to purchase) by anyone other than an Owner is deemed a rental, unless the Owner delivers to the Board a written purchase contract, conditional sales contract or similar contract whereby the occupant is unconditionally and presently legally obligated to purchase the Lot. Any purported land contract, seller-financed sale contract, or similar agreement must be recorded with the Hendricks County Recorder to be deemed valid. If such land contract, or a validly-executed memorandum thereof, is not recorded at the time of execution, it will be considered a rental agreement for purposes of this Section 28.

Section 28.8. Short-Term Rentals. Owners may not rent or operate their Lot on a hotel, transient or short-term rental basis. For the purpose of Section 28, "short-term rental" is defined as any term of less than one (1) year. This short-term rental prohibition includes, but is not limited to, the use of a short-term rental platform through which unaffiliated parties offer to rent a Lot or portion thereof to an occupant and collects consideration for the rental from the occupant (for example purposes, and without limitation, Airbnb and Vrbo).

[SIGNATURE PAGE TO FOLLOW]

Certification. The undersigned officers hereby represent and certify that all requirements for and conditions precedent to the above amendments have been fulfilled and satisfied, and that the Owners representing a majority of the Lots in Oak Park have approved the foregoing Amendments.

IN WITNESS WHEREOF, we, the undersigned, do hereby execute these Amendments to the Declaration of Restrictive Covenants, and certify the truth of the facts herein stated, this 17 day of June, 2022.

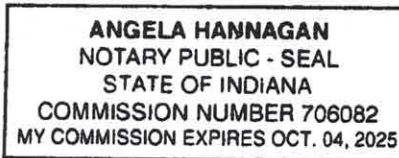
William Munson
Signature of President

William Munson
Printed

Linda L. Shore
Signature of Secretary

Linda L. Shore
Printed

STATE OF INDIANA)
COUNTY OF Hendricks)



Before me a Notary Public in and for said County and State, personally appeared William Munson and Linda L. Shore, the President and Secretary, respectively, of the Oak Park Homeowners Association, Inc., who acknowledged execution of the foregoing for and on behalf of said corporation and its members and who, having been duly sworn, stated that the representations contained herein are true.

Witness my hand and Notarial Seal this 17th day of June, 2022.

Angela Hannagan
Notary Public, Signature
Angela Hannagan
Printed

My Commission Expires:

Oct. 04, 2025

Residence County: Hendricks

"I affirm, under the penalties for perjury, that I have taken reasonable care to redact each Social Security Number in this document, unless required by law." Gregory A. Chandler, Esq.

This instrument prepared by, and should be returned to, Gregory A. Chandler, EADS MURRAY & PUGH, P.C., Attorneys at Law, 9515 E. 59th Street, Suite B, Indianapolis, IN 46216.